

# 19STCV40091 19STCV40091

County: los-angeles

Division: Civil Law and Motion

Department: 734

Hearing date: 2026-08-20

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Case Number: 19STCV40091 Hearing Date: August 20, 2026 Dept: 734

The

following tentative ruling is issued pursuant to Rule of Court 3.1308 at 10:54 AM on August 19, 2026.

Rule

of Court 3.1308(a)(1) provides that a “tentative ruling will become the ruling of the court if the court has not directed oral argument by its tentative ruling and notice of intent to appear has not been given.”

The

Court does not desire oral argument on the motion addressed herein. Notice of intent to appear is REQUIRED pursuant to California Rule of Court 3.1308(a)(1).

No

later than 4:00 p.m. on August 19, 2026, the moving and opposing parties must provide notice to ALL OTHER PARTIES and the staff of Department 734 whether the party intends to (1) appear and argue the motion, or (2) submit to the tentative ruling.

Notice to Department 734 should be sent by

email to [email protected], with opposing parties copied on the email. The high volume of telephone calls to Department 734 may delay the Court's receipt of notice, so telephonic notice to 213-830-0776 should be reserved for situations where parties are unable to give notice by email.

Plaintiff

sued Defendant, an attorney representing his parents in a security deposit dispute with Plaintiff landlord, for his conduct in connection with a lawsuit regarding that security deposit dispute.

On

January 30, 2020, Judge Rico granted Defendant's anti-SLAPP special motion to strike.

Plaintiff

appealed the order granting the anti-SLAPP special motion to strike and order granting attorney's fees on the anti-SLAPP motion, as well as the denial of a motion to set an OSC to hold Defendant and his attorney in contempt.

The

Court of Appeal affirmed the order granting the special motion to strike and the motion for attorney's fees and dismissed the appeal as to the denial of the contempt motion.

On

November 8, 2022, the Court entered a Judgment of Dismissal awarding Defendant attorney's fees and costs.

Plaintiff/Judgment

Debtor moves to strike Defendant's memorandum of costs served June 3, 2026 and July 3, 2026.

Plaintiff

further moves for an order quashing and recalling the Writ of Execution issued July 8, 2026 and imposing sanctions.

#### TENTATIVE RULING

Plaintiff/Judgment

Debtor Shahrouz Jahanshahi's motion to strike or tax the entire Memorandum of Costs filed on July 2, 2026 is GRANTED. However, Plaintiff/Judgment Debtor's request for costs incurred in bringing the motion is DENIED, as that amount is not identified in the motion, as required by Civ. Proc. Code § 2023.040.

Plaintiff/Judgment Debtor Shahrouz

Jahanshahi's motion to quash is GRANTED. In light of the Court's ruling granting Plaintiff/Judgment Debtor's motion to quash, the Court finds that Plaintiff/Judgment Debtor's arguments regarding incorrect calculations are moot.

Further,

the Court's July 7, 2026 ruling regarding the service requirement was issued after

Defendant/Judgment Creditor filed the writ application on July 2, 2026. The writ was not signed and issued until July 8, 2026. Based thereon, Defendant/Judgment Creditor's counsel did not violate the Court's July 7, 2026 order. Of course, counsel is expected to comply with July 7, 2026 going forward, and the Court does not see the need for additional safeguards as requested by Plaintiff/Judgment Debtor—a violation of the Court's order is subject to sanctions and/or contempt proceedings. In that regard, Plaintiff/Judgment Debtor's request for reconsideration of the July 7, 2026 order is DENIED.

Plaintiff/Judgment Debtor's request for costs incurred in bringing the motion is DENIED, as that amount is not identified in the motion, as required by Civ. Proc. Code § 2023.040.

#### ANALYSIS

#### Motion To Strike and Tax Memorandum of Costs

#### Plaintiff/Judgment

Debtor moves to strike Defendant's memorandum of costs served June 3, 2026 and July 3, 2026. Plaintiff/Judgment Debtor seeks the following order:

- Striking, in its entirety,  
the \$13,847.72 in costs claimed in Defendant/Judgment Creditor Benjamin Tarn Rosenfeld's ("Judgment Creditor") Memoranda of Costs After Judgment served June 3, 2026 and July 3, 2026, on the ground that neither memorandum has been shown to have been properly and timely filed with the Court before being used to support the Writ of Execution issued July 8, 2026;
- In the alternative, taxing  
those costs to the extent Judgment Creditor cannot substantiate, item by item, that each cost was actually incurred within two years, was reasonable and necessary, and has not already been recovered through the \$32,452.35 in payments Judgment Creditor has acknowledged receiving;
- Ordering Judgment Creditor  
to file a corrected, itemized Memorandum of Costs reconciling the \$13,847.72 in "previously allowed" costs with the \$8,750.93 principal balance Judgment Creditor's own declarant swore, under penalty of perjury, remains due after credits — a figure that is \$13,847.72 less than the principal the July 8, 2026 Writ purports to enforce;

- Awarding Judgment Debtor

his costs of bringing this motion, including filing and service fees, pursuant to Code of Civil Procedure sections 1032 and 1033.5, on the ground that this motion — like the fourteen months of motion practice preceding it — was made necessary by Judgment Creditor's own failure to file and serve correct, itemized cost memoranda in the first instance;

- Imposing monetary sanctions

under Court's inherent power against Defendant Rosenfeld and his counsel Bruce Greenberg for continuous violation of due process clause of the law, rules and procedures of the court that were admonished and ordered to follow.

At

Paged 4 – 6 of the Opposition, Defendant/Judgment Creditor provides an explanation of how the amount levied was applied first to reduce interest, then to reduce principal, then how interest was calculated on the remaining principal. Defendant/Judgment Creditor also explains that the \$13,847.72 is the result of this Court granting in part Plaintiff/Judgment Debtor's motion to tax costs in the amount of \$245 on April 2, 2026. These calculations are reflected on the Memorandum of Costs which was filed on July 2, 2026 and served a month earlier on June 3, 2026 per the attached proof of service.

In

the Reply, Plaintiff/Judgment Debtor argues that the MC-012 states that judgment principal remaining due is \$8,750.93 and that \$841.76 in interest was calculated on that principal. Rosenfeld's own Opposition and July 8 writ instead use \$22,598.65 as principal—exactly \$13,847.72 more. The Court need not revisit its April 2, 2026 allowance of those costs to require one accurate, verified enforcement accounting.

It

appears the Plaintiff/Judgment Debtor is correct: The Memorandum of Costs filed on July 2, 2026 reflects that accrued interest of \$841.76 was calculated at 10% on the unpaid principal amount of \$8,750.93. However, in the Opposition, Defendant/Judgment Creditor indicates that the \$841.76 was calculated on \$13,847.72 of costs plus \$22,598.65 in principal. (See Opposition, Pages 5:22 – 6:6.) In this regard, the July 2, 2026 Memorandum of Costs contains an incorrect representation and will be stricken in its entirety.

Plaintiff/Judgment

Debtor's motion to strike or tax the entire Memorandum of Costs filed on July 2, 2026 is GRANTED. However, Plaintiff/Judgment Debtor's request for costs incurred in bringing the motion is DENIED, as that amount is not identified in the motion, as required by Civ. Proc. Code § 2023.040[1].

Motion To Quash Writ of Execution

Request For Judicial Notice

Plaintiff/ Judgment

Debtor requests that the Court take judicial notice of the following:

1. The complete court record in Jahanshahi  
v. Rosenfeld, Case No. 19STCV40091, Los

Angeles County, including all pleadings,  
orders, minute entries, rulings, and the final judgment.

2. The Docket of this action, Jahanshahi  
v. Rosenfeld, Case No. 19STCV40091, reflecting judgment creditor's memorandum of  
costs filed on February 3, 2025, without service on Jahanshahi.

3. Exhibit 1: Certified Reporter Transcript  
(RT) of Plaintiff Jahanshahi's Motion for

Sanctions dated May 22, 2025.

4. Exhibit 2: Certified Reporter Transcript  
of May 9, 2025 hearing of Plaintiff's Motion to Strike and Tax Costs.

5. Exhibit 3: The Minute Order dated  
May 22, 2025, denying motion for sanctions

6. Exhibit 4: The Minute Order dated  
July 6, 2025, denying motion to strike and tax costs

7. Exhibit 5: Certified Reporter Transcript  
of November 6, 2025 hearing of Plaintiff's

Motion to Strike and Tax Costs.

8. Exhibit 6: Certified Reporter Transcript  
of November 18, 2025 hearing of Plaintiff's

Motion to Strike and Tax Costs.

9. Exhibit 7: CJEO Formal Opinion 2024-025  
– Responding to Attorney Misconduct,

publicly published and available at  
California Supreme Court Committee on Judicial Ethics Opinion at the following URL  
<https://www.judicialethicsopinions.ca.gov/formal-opinions/>, and the underlined link  
above.

10. Exhibit 8: Tentative Ruling in  
Case No. 25STLC05786–Judgment Debtor requests  
judicial notice of the Tentative Ruling issued February 17, 2026, by Department  
26 of the Los Angeles County Superior Court (Spring Street Courthouse) in Case No.  
25STLC05786. (Evid. Code § 452(d) [court records]). These ruling addresses conduct  
substantially similar to Judgment Creditor's counsel's violations in this case.  
The court ordered counsel to appear and explain why he submitted authorities that  
“do not stand for the cited legal proposition,” and stated it would consider sanctions  
under California Rules of Professional Conduct, Rule 3.3(a) and Code of Civil Procedure  
section 128.7. It supports Judgment Debtor's request for sanctions and corrective  
action against Bruce A. Greenberg, Esq. for similar violations. A true and correct  
copy is attached as Exhibit 1, that I have personally downloaded from the Los Angeles  
Court website from the following URL <https://lacourt.org>.

11. Exhibit 9: Judicial Council Form  
MC-012 (Revised January 1, 2026)

Requests Nos.

1, 2, 5, 6 and 10 are GRANTED per Evid. Code § 452(d)(court records).Requests Nos.  
3, 4, 7 and 8 are GRANTED. The Court may properly take judicial notice of the reporter's  
transcript of court proceedings pursuant to Evidence Code §§ 452(d) and 459. (See, e.g., In re Travis C. (1991)  
233 Cal.App.3d 492, 497 n.4 & 5.)

Request No. 7 is GRANTED per Evid. Code, § 452(c)(official acts of the judicial  
department). Requests Nos. 9 and 11 are GRANTED as an official act to the judicial  
branch. (Evid. Code § 452(c).)

## Discussion

### Plaintiff Judgment Debtor

moves for the following order:

#### 1. Quashing and recalling the Writ

of Execution issued July 8, 2026 (Case No. 19STCV40091), on the ground that the amounts stated on its face are internally inconsistent with, and overstate, the amounts Defendant/Judgment Creditor Benjamin Tarn Rosenfeld ("Judgment Creditor") swore to in his own Memorandum of Costs After Judgment served five days earlier;

#### 2. Ordering Judgment Creditor to file

and serve the levying officer's Return(s) and Notice(s) of Levy establishing the actual date(s) the \$32,452.35 in payments acknowledged in Judgment Creditor's MC-012 was received, and recalculating post-judgment interest as of those date(s) under Code of Civil Procedure section 685.030;

#### 3. Finding that Judgment Creditor's

filing of the July 8, 2026 Writ without service on Judgment Debtor violated this Court's July 7, 2026 order and imposing monetary sanctions payable to the court, in an amount not to exceed \$1,500, under Code of Civil Procedure section 177.5;

#### 4. Awarding Judgment Debtor his costs

of bringing this motion, including filing and service fees, pursuant to Code of Civil Procedure sections 1032 and 1033.5, on the ground that those costs—like the fourteen months of motion practice preceding them—are a direct and avoidable consequence of Judgment Creditor's own noncompliance with the applicable filing and service requirements;

#### 5. Reconsidering, in light of facts

that arose after the July 7, 2026 hearing, the narrow question of what prospective safeguard is warranted—specifically, an order that no further writ of execution or memorandum of costs may be presented to the Clerk for issuance or filing unless accompanied, at the time of presentation, by a certificate of concurrent service on Judgment Debtor and by an itemized accounting reconciling any costs claimed with the principal balance most recently acknowledged in a filed MC-012, with noncompliance to constitute grounds for an automatic order to show cause re: contempt; and, in the alternative and only if the Court finds the pattern shown here warrants it, an order barring Judgment Creditor from presenting any further post judgment enforcement

filing in this action without prior leave of court.

In

the Opposition, Defendant/Judgment Creditor argues that the Writ of Execution has already been surrendered to the Court, so there is no Writ to quash. See Exhibit “I” to the Declaration of Bruce A. Greenberg.

The Court views

Defendant/Judgment Debtor’s voluntary recall of the writ as an admission that it should be quashed. As such, the motion to quash the writ issued on July 8, 2026 is GRANTED. In light of the Court’s ruling granting Plaintiff/Judgment Debtor’s motion to quash, the Court finds that Plaintiff/Judgment Debtor’s arguments regarding incorrect calculations are moot.

However, the

Court’s July 7, 2026 ruling regarding the service requirement was issued after Defendant/Judgment Creditor filed the writ application on July 2, 2026. The writ was not signed and issued until July 8, 2026. Based thereon, Defendant/Judgment Creditor’s counsel did not violate the Court’s July 7, 2026 order. Of course, counsel is expected to comply with July 7, 2026 going forward. In that regard, Plaintiff/Judgment Debtor’s request for reconsideration of the July 7, 2026 order is DENIED.

Plaintiff/Judgment Debtor’s request

for costs incurred in bringing the motion is DENIED, as that amount is not identified in the motion, as required by Civ. Proc. Code § 2023.040.

The Court will not address new relief requested in the Reply brief.

[1]

A request for a

sanction shall, in the notice of motion, identify every person, party, and attorney against whom the sanction is sought, and specify the type of sanction sought. The notice of motion shall be supported by a memorandum of points and authorities, and accompanied by a declaration setting forth facts supporting the amount of any monetary sanction sought.

(Civ. Proc. Code, § 2023.040.)